On July 14, 2026, Plaintiff filed a Declaration of Sandara DeVonne with the referenced exhibits attached. Given the prior lack of exhibits in the Court filing originally, the Court will inquire whether Plaintiff can demonstrate that all exhibits were properly served pursuant to the now-filed POS. Assuming proper service of the motion and all documents in support can be demonstrated, the Court opines as follows:

An order approving service by posting was approved by the Court on December 17, 2024. (DeVonne Decl., ¶¶5-6 Exh. B.) On July 15, 2026, Plaintiff filed a POS signed by a registered process server under penalty of perjury showing service on All Unknown Occupants by posting on January 3, 2025, and mailing by certified mail on January 10, 2025. A Prejudgment Claim of Right of Possession is listed as one of the documents included with the service. (DeVonne Decl., Exh. A.) Service on All Unknown Occupants occurred at the same time as service on Defendant Zhang. (DeVonne Decl., Exh. C.) Service was in compliance with Code of Civil Procedure section 415.46.

Service of a section 415.46 Prejudgment Claim of Right to Possession form effectively forces occupants to elect at the outset of the litigation to be added as defendants or waive the right to object to execution. Here, no occupant filed a Prejudgment Claim of Right to Possession. (DeVonne Decl., ¶11.)

A Prejudgment Claim ensures enforceability of the writ against occupants not named as defendants in the complaint and bars any occupant's right to object to eviction by a post-judgment claim of right of possession. (Code Civ. Proc., §§ 1174.3(a); 415.46(e)(1); & 715.020(d).)

In light of service being demonstrated on All Unknown Occupants, which included service of a Prejudgment Claim of Right to Possession the Court would incorporate the factual findings from its previous ruling as to Defendant and would, likewise, grant summary judgment as to "All Unknown Occupants."

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18. *Pierce, et al, v. Quality Drive Away, Inc., et al,* CIVSB2313410
Motion for Preliminary Approval of Class Action Settlement
8/11/26, 1:30 p.m., Dept. S17

Tentative Ruling

The Court would **GRANT** the motion for preliminary approval. Please note the highlighted sentences *infra* that set forth items that must be addressed prior to final approval.

Preliminary Approval of Class Action Settlements in General

Settlement of a class action requires court approval. (Cal. Rules of Court, rule 3.769.) The moving party must demonstrate that "the settlement is fair, adequate and reasonable." (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 126; *Reed v. United Teachers Los Angeles* (2012) 208 Cal.App.4th 322, 337.) The court has "broad discretion in making this determination." (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors the court may consider include "the strength of the plaintiffs' case, the risk, the expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement." (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.) This list of factors "is not exhaustive and should be tailored to each case." (*Ibid*.) The court may "engage in balancing and weighing of factors depending on the circumstances of each case." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 245, overruled on other grounds in *Hernandez v. Restoration Hardware* (2018) 4 Cal.5th 260, 269.)

"Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement." (*Wershba*, *supra*, 91 Cal.App.4th at p.245 [quoting *Dunk*, *supra*, 48 Cal.App.4th at p. 1801].) "The court must therefore scrutinize the proposed settlement agreement to the extent necessary to "reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned." (*Ibid*. [quoting *Officers for Justice v. Civil Service Com'n* (9th Cir. 1982) 688 F.2d 615, 625].)

Nevertheless, the settlement is entitled to a "presumption of fairness . . . where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and 94) the percentage of objectors is small." (*Kullar*, *supra*, 168 Cal.App.4th at p. 128 [quoting *Dunk*, *supra*, 48 Cal.App.4th at p. 1802].)

Provisional Class Certification at Preliminary Approval

Although a lesser standard can be used to provisionally certify a settlement class, the court still needs to review and consider each element for certification. (*Global Minerals & Metals Corp. v. Superior Court* (2003) 113 Cal.App.4th 836, 859.) But, as settlement eliminates the need for trial, "the case management issues inherent in ascertainable class determination need not be confronted." (*Ibid*.)

A class should be certified when "the question is one of a common or general interest, of many persons, or when parties are numerous and it is impracticable to bring them all before court." (Code Civ. Proc., § 382.) There must be both an ascertainable class and a well-defined community of interest, which includes predominate questions of law or fact, class representatives with claims typical of the class, and class representatives who can adequately represent the class. (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.)

Settlement Notice

"If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement." (Rules of Court, rule 3.769(f); *Wershba v. Apple Computer, Inc.*, *supra*, 91 Cal.App.4th at p. 251.)

"The purpose of the class notice in the context of a settlement is to give class members sufficient information to decide whether they should accept the benefits offered, opt out and pursue their own remedies, or object to the settlement. As a general rule, class notice must strike a balance between thoroughness and the need to avoid unduly complicating the content of the notice and confusing class members. Here, again, the trial court has broad discretion. (*Wershba*, *supra*, 91 Cal.App.4th at p. 252.)

The manner of notice shall be by means reasonably calculated to apprise the class members of the settlement. (Rules of Court, rule 3.766(f).) The standard is "whether the notice has 'a reasonable chance of reaching a substantial percentage of the class members.'" (*Wershba*, *supra*, 91 Cal.App.4th at p. 251.) The court must consider the interest of the class, type of relief obtained, the state of the individual class members, the costs of notifying the class members, the resources of the parties, the possible prejudice to the class members who do not receive notice, and the *res judicata* effect on the class members. (Rules of Court, rule 3.766(e).)

The Proposed Settlement

This is a wage-and-hour class and representative action. Plaintiffs worked for Defendant and alleges that it misclassified them and other workers as independent contractors. On June 12, 2023, Plaintiff Pierce filed the instant suit (CIVSB2313410), alleging a class claim for various wage-and-hour violations. Shortly thereafter, parallel to this instant suit, Plaintiffs Deon Gentry Sr. and Deon Gentry Jr. filed a similar suit alleging class wage-and-hour allegations on June 22, 2023 (CIVSB2314287). On that same date, the Gentry Plaintiffs issued a notice letter to the Labor and Workforce Development Agency (LWDA), in anticipation of a representative action pursuant to the Private Attorneys General Act (PAGA). And, after the exhaustion of administrative remedies, the Gentry Plaintiffs filed a PAGA suit on August 28, 2023 (CIVSB2322025) (the "Gentry PAGA" case).

Notably, this instant case originally filed by Plaintiff Pierce was removed to Federal Court on July 18, 2023, but was remanded back on September 8, 2023. Likewise, the original wage-and-hour class case filed by the Gentry Plaintiffs was removed to Federal Court on August 14, 2023, but was remanded back on December 26, 2023.

Ultimately, the cases began to be coordinated. On March 29, 2024, Plaintiff Pierce filed a First Amended Complaint (FAC) in this matter to add-in the Gentry Plaintiffs and fold in the salient claims. In that light, on March 11, 2025, pursuant to a party stipulation, the Court *consolidated* the Gentry PAGA case (CIVSB2322025) into this instant case (CIVSB2313410). The Court notes that there were dismissals as to Plaintiff Deon Gentry *Senior* in order to accommodate his passing.

After re-commencing the suit, the Plaintiffs sought and received extensive discovery, including a substantial sampling of time and payroll records. (Mara Decl., ¶¶17-18; Lidman Decl., ¶13 [re Gentry Depo].) Plaintiff also received policy documents. (*Ibid.*) Thereafter, the parties engaged in two full-day, arms-length mediations. First, on February 11, 2025, they mediated with neutral Kelly Knight. (Mara Decl., ¶19.) Unfortunately, that first mediation was unsuccessful. However, they again mediated on March 12, 2026, this time with neutral Stephanie Chow. (*Ibid.*). That mediation was successful, and the parties ultimately completed a long-form settlement agreement by June of 2026. (Mara Decl., Exh. 1 [Settlement].) The moving papers indicate that counsel "directed" his office to notify the LWDA of the settlement contemporaneously with this motion. (Lidman Decl., ¶15.) Final approval will be contingent on confirmation that proper notice of the Settlement was, in fact, given to the LWDA.

The class size is currently estimated at 213. (Mara Decl., ¶31.) Troublingly, no figure is given for the estimated number of PAGA aggrieved employees.[1] Any final approval will be contingent on the provision of the number of PAGA aggrieved employees.

For purposes of settlement, the class period will reach from June 12, 2019, to May 11, 2026. (Settlement, ¶1.) The PAGA period is from June 22, 2022, to May 11, 2026. The class is defined as those drivers whose home terminals were in California and who drove during the relevant class and PAGA periods. Payment is *pro rata* based on the number of trips undertaken. (Settlement, ¶5(D)(i) & (E) [re PAGA].)

The settlement is proposed on the following terms: Defendants will pay a gross, non-reversionary settlement amount of $2,000,000.00,[2] from which will be deducted (1) $700,000.00 for Class Counsel's attorneys' fees (exceeding 35% of the total);[3] (2) costs not to exceed $60,000.00; (3) Plaintiffs' enhancement fees of no more than $20,00.00[4] each (or $40,000 total); (4) claims administration fees of no more than $11,175.00; and (5) PAGA penalties of $75,000.00 (of which $56,250, or 75%, will go to the LWDA and $18,750, or 25%, will go to the aggrieved employees).

The parties estimate this will leave a wage-and-hour only net settlement amount of a non-reversionary $1,113,825. This amount would be split by the class of approximately 213 employees in proportionate shares determined by number of workweeks within the Settlement Class Period. The average per class member would be $5,229.23. Ten percent (10%) of the payout would be representative of wages, and the remaining ninety percent (90%) would be representative of penalties and interest. (Settlement, ¶5(F).) Final approval will contingent of an explanation as to why it is proper that only ten percent (10%) of this settlement is representative of wages, given that the bulk of the claims relate to wages. (See., e.g., Mara Decl., ¶¶31-33.)

Presuming for the moment that – despite the different relevant SOL periods – all class members are also PAGA aggrieved employees, the average PAGA payout would be $88.03.

The amount of the settlement is appropriate given the strength of the case, especially in light of Counsel's estimated potential liability exposure. (Mara Decl., ¶¶17-31 & 33.) However, the lower actual

[1] An exact number of PAGA aggrieved employees will be necessary as Final Approval. The Court will grant Preliminary Approval on with the understanding that the PAGA aspect of the settlement is to be distributed on a *pro rata* basis. (Settlement, ¶5(E) ["Amount proportionate to the number of trips"].)

[2] The Court acknowledges that an escalator clause may later increase the proposed settlement. (Settlement, ¶4(E).)

[3] While the Court does not *per se* reject proposed attorneys' fees of 35%, it is usually not inclined to grant that percentage unless there is some sort of unusual complexity or risk that would warrant such an upward deviation. On motion for final approval, Counsel will provide an analysis of that complexity or risk that counsel believes warrants this upward departure.

[4] Similarly, the Court notes that the requested enhancement fees are above the norm, but the submitted declarations – as of yet – do not establish any unusually high level of work, complexity, or risk. (See, e.g., Gentry Decl., ¶7 [present at mediation and answered attorney questions].) On motion for final approval, further declarations will be provided from the representative plaintiffs setting out in further detail the work done in furtherance of the case.

settlement appears fair and reasonable when calculated to include analysis of the possibility the class would not be certified; various potential defenses; as well as the potential appeal of any judgment should Plaintiffs be successful in this venue.

Given the presumption of fairness, the Court would find the figure sufficient to satisfy the *Kullar* requirement. Further, adequate discovery and investigation has occurred. There is no evidence of fraud or collusion. Class Counsel are well qualified to represent the class. The settlement was reached through an arms-length negotiation with the assistance of an experienced and well-respected mediator. The deductions from the gross settlement fund (attorneys' fees,[5] costs,[6] administration fee, incentive award, PAGA penalties, and taxes) appear to be reasonable and appropriate and are, therefore, *preliminarily* approved in the "not to exceed" amounts in the motion. The proposed notice is, also, adequate.

Counsel and the representative are appointed conditionally to represent the class. The motion is *granted*. The court will schedule a hearing to consider final approval at the closest available date to the date recommended by counsel.

The Court preliminarily approves the settlement and (1) appoints Mara Law Firm, PC; Lidman Law, APC; and Haines Law Group, APC, conditionally as Settlement Class Counsel; (2) appoints Deandre Pierce and Deon Gentry, Jr., as Class Representatives; (3) approves Phoenix Settlement Administrators as Settlement Administrator; (5) preliminarily finds the settlement fair, reasonable, and adequate; and (6) approves the form and content of the proposed Class Notice and directs the mailing of the same.

At final approval, counsel must advise the court of any pending cases that will be affected by approval of the settlement. Again, counsel must provide the *exact* number of class members and workweeks for the class settlement and the *exact* number of PAGA aggrieved employees and pay periods for the PAGA settlement.

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[5] Counsel must provide a full lodestar analysis in the motion for final approval.

[6] Costs must be documented. The court does not award costs for LEXIS or Westlaw usage (which are considered items of overhead), faxes (also overhead), or photocopying in excess of $0.06 per page.